



Tattoo Studio Documentation Gap Assessment

Every item below maps to documentation, training, or templates included in the Compliance Ghost Kit.

How to use: check YES, NO, or N/A for each item. DSHS inspects studios without notice, and inspectors start with your paperwork. A studio license runs about \$927 for two years — the \$997 Compliance Kit is what protects it.

Penalty basis: TMB, TSBDE, TDLR, and DSHS may each assess up to \$5,000 per violation under Occ. Code §165.001, §264.002, §51.302 and Health & Safety Code §146.019, and each day a violation continues can be treated separately. OSHA serious violations reach \$16,550 and willful or repeated ones \$165,514. HIPAA civil penalties run \$145–\$73,011 per violation with a \$2,190,294 annual cap for repeat violations of the same provision. OSHA and HIPAA amounts are the 2026 figures and adjust for inflation each January. Amounts shown are maximums, not predictions.

DSHS LICENSING & REQUIRED TRAINING

	YES	NO	N/A
Does the studio hold a current DSHS license for this location, covering the services you actually perform? Rule & penalty: up to \$5,000 per violation, each day separate (DSHS) — operating unlicensed is its own violation KIT INCLUDES: License & Renewal Tracker	☐	☐	☐
Has every employee completed an approved human trafficking prevention training course, with proof kept on file? Rule & penalty: Health & Safety Code §146.0075, added by HB 1778 (2025) — no employee could be required to complete it before January 1, 2026. HHSC approves the courses and at least one is free; the approved list is posted by the department KIT INCLUDES: Human Trafficking Training Log + course links + completion certificates	☐	☐	☐
Are the human trafficking signs required by Government Code §402.0351 posted in the studio? Rule & penalty: Health & Safety Code §146.0075(c) · up to \$5,000 per violation, each day separate (DSHS) KIT INCLUDES: Required Postings Pack (print-ready)	☐	☐	☐
Do all artists have current bloodborne pathogen training certificates on file? Rule & penalty: up to \$5,000 per violation, each day separate (DSHS) — expired certificates are a documentation finding on inspection KIT INCLUDES: BBP training guide + quiz + printable completion certificates	☐	☐	☐

STERILIZATION & SANITATION

	YES	NO	N/A
Is every sterilization unit spore-tested every calendar month by a laboratory, with results retained? Rule & penalty: 25 TAC §229.407 · up to \$5,000 per violation, each day separate (DSHS) KIT INCLUDES: Monthly Spore Test Log + laboratory submission guide	☐	☐	☐



	YES	NO	N/A
Do your sterilization records show the date, instruments, and operator initials for every cycle? Rule & penalty: 25 TAC §229.407 · up to \$5,000 per violation, each day separate (DSHS). This is the most common inspection finding KIT INCLUDES: Sterilization Log template (print-ready daily sheets)	☐	☐	☐
Does every sterilized package carry a chemical or heat indicator confirming it went through a cycle? Rule & penalty: 25 TAC §229.407 · up to \$5,000 per violation, each day separate (DSHS) KIT INCLUDES: Sterilization SOP + packaging checklist	☐	☐	☐
Are single-use items — needles, razors, ink caps, ointment portions — never reused between clients? Rule & penalty: 25 TAC §229.407 · up to \$5,000 per violation, each day separate (DSHS) KIT INCLUDES: Station Setup & Teardown Checklist	☐	☐	☐

CLIENT RECORDS & CONSENT

	YES	NO	N/A
Do you verify every client's government-issued photo ID with date of birth before work begins? Rule & penalty: 25 TAC §229.406 · up to \$5,000 per violation, each day separate (DSHS) KIT INCLUDES: Client Record & Consent form	☐	☐	☐
Does every client record capture the service, body location, ink colors with manufacturer and lot, and the artist — retained at least 2 years from the last entry? Rule & penalty: 25 TAC §229.406 — records kept at the studio at least two years. up to \$5,000 per violation, each day separate (DSHS) KIT INCLUDES: Client Record & Consent form + retention policy guide	☐	☐	☐
For anyone under 18: do you decline all tattoos except the narrow cover-up exception — covering an existing tattoo — and only with a signed parental affidavit, proof of the parent's identity and relationship, and a photo or written description kept in your permanent records? Rule & penalty: Health & Safety Code §146.012; 25 TAC §229.406. Tattooing a minor outside this exception is a criminal offense — a notarized consent form does NOT make it lawful KIT INCLUDES: Minor Cover-Up Affidavit + identity verification checklist	☐	☐	☐
If you also pierce: for a minor, do you obtain written notarized parental consent containing the required details, or have the parent present and verified at the studio? Rule & penalty: 25 TAC §229.406 — the notarized-consent route applies to body piercing, not tattooing. up to \$5,000 per violation, each day separate (DSHS) KIT INCLUDES: Notarized Piercing Consent form (adult + minor versions)	☐	☐	☐



	YES	NO	N/A
Does every client receive written aftercare instructions, with receipt documented? Rule & penalty: 25 TAC §229.406 · up to \$5,000 per violation, each day separate (DSHS). Verbal-only aftercare is not sufficient KIT INCLUDES: Print-ready aftercare instruction sheets	☐	☐	☐
Do you have a written procedure for reporting any infection or allergic reaction to DSHS in writing within five working days of learning of it? Rule & penalty: 25 TAC §229.406 · up to \$5,000 per violation, each day separate (DSHS) KIT INCLUDES: Infection reporting procedure + DSHS notification form	☐	☐	☐

OSHA, SHARPS & WASTE

	YES	NO	N/A
Are sharps collected in rigid, biohazard-labeled containers and removed by a registered medical waste transporter, with manifests retained? Rule & penalty: 25 TAC §229.411; 30 TAC Chapter 326 · up to \$5,000 per violation, each day separate (DSHS) KIT INCLUDES: Sharps & Waste SOP + transporter manifest log	☐	☐	☐
Do you have a written OSHA Exposure Control Plan reviewed within the last 12 months? Rule & penalty: up to \$16,550 per serious violation (OSHA) — the plan must be reviewed annually (29 CFR 1910.1030(c)) KIT INCLUDES: Exposure Control Plan template + annual update checklist	☐	☐	☐
Is annual bloodborne pathogens training documented with records kept 3 years, and hepatitis B vaccination offered to at-risk staff within 10 days of hire? Rule & penalty: up to \$16,550 per serious violation (OSHA) (29 CFR 1910.1030(f)–(h)) KIT INCLUDES: Training Log + Hep B offer and declination forms	☐	☐	☐
Do you have a written Hazard Communication program with Safety Data Sheets for inks, soaps, and disinfectants in an accessible location? Rule & penalty: up to \$16,550 per serious violation (OSHA) (29 CFR 1910.1200) KIT INCLUDES: HazCom program + SDS binder + employee access log	☐	☐	☐
Do you have a documented new-employee orientation covering hygiene and safety procedures? Rule & penalty: up to \$5,000 per violation, each day separate (DSHS), plus up to \$16,550 per serious violation (OSHA) KIT INCLUDES: New hire orientation checklist + safety training materials	☐	☐	☐

YOUR SCORE: _____ YES / _____ NO / _____ N/A **“NO” COUNT:** 0–2 low · 3–5 medium · 6+ high



Every “NO” above is a documentation gap the Compliance Kit fills.

The Compliance Ghost Compliance Kit (\$997) includes ready-to-use compliance manuals, training guides with quizzes, completion certificates, the required forms and templates, and a step-by-step implementation guide — covering every item on this checklist, written for your business and delivered within 48 hours.

One-time purchase. Payment plans available: 3 × \$349/mo. Compliance Shield is optional and keeps these documents current as Texas rules change — \$89/month or \$890/year, cancel anytime.

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